HEADNOTE

> *"It constitutes an undue delay for the applicant, instead of promptly undertaking a limited investigatory effort that would have been sufficient to assess infringement of the patent-in-suit, to conduct more extensive and time-consuming investigations that were not necessary for determining infringement of the patent-in-suit before filing its application for preliminary measures."*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Application for provisional measures

PATENT
EP 2 349 022

POWERED SURGICAL CUTTING AND STAPLING APPARATUS WITH MANUALLY RETRACTABLE FIRING SYSTEM

KEYWORDS
Urgency · necessity · preliminary injunction

SUMMARY
The Local Division in Düsseldorf ruled on an application for provisional measures. The patent at issue relates to a powered surgical cutting and stapling apparatus with manually retractable firing system. According to the headnotes of the decision, applicants must undertake only limited investigatory efforts needed to assess infringement. Conducting more extensive investigations than necessary to determine infringement before filing for preliminary measures constitutes undue delay. This means that applicants should move promptly to seek provisional relief once they have sufficient information.